



BREAKING BAD
(Clockwise from left) Razing of houses in Assam's Nagaon, demolition drive in Delhi's Jahangirpuri, and in Khargone, MP

11 and 12, civic authorities demolish houses of those allegedly involved in it

↘ ASSAM, MAY: Authorities in Nagaon district demolished the homes of five families that were allegedly involved in setting fire to a police station in the district

↘ DELHI, APRIL: The Municipal Corporation of Delhi, run by BJP, carried out a demolition drive at Jahangirpuri, following a communal clash during a procession on Hanuman Jayanti. The drive was stopped by the Supreme Court

↘ GUJARAT, APRIL: A team of civic authorities at Khambhat in Anand district razed seven kiosks and pushcarts that belonged to persons accused of attacking a religious procession on Ramnavami

↘ MADHYA PRADESH, APRIL: Following clashes between two communities in Khargone district on Ramnavami, 16 houses and 29 shops of alleged stone-pelters demolished

↘ MADHYA PRADESH, MARCH: When a youth died in Raisen district after a communal clash, CM Shivraj Singh Chouhan ordered demolition of the houses of the accused

plaint is made, government agencies look the other way as the cases are way too many for them to practically handle," says Dipankar Mazumdar, a Delhi-based senior architect. Several town planners in UP admitted that few people build houses in adherence to the approved plan. For instance, the municipal corporation or the development authorities give approval for two floors, but people often construct additional ones.

However, Adityanath has made it known that his government has no such intent of a public drive in UP—particularly not against the poor—but that only criminals and anti-social elements will face the bulldozer. And, by all indications, the criminality will be decided by his police force.

For instance, the police have slapped the Gangster Act on Javed Mohammad, allowing authorities scope to take action against him.



"Bulldozers were used by Prayagraj Development Authority under the ambit of law. The house was constructed illegally"

PRASHANT KUMAR
ADG, Law and Order, Uttar Pradesh Police

Legal experts have rightly pointed out that the Gangster Act doesn't permit demolitions. "The police can only attach property under the Gangster Act, but cannot run a bulldozer on it. This is illegal," says advocate Manojkant Rai. But to circumvent this illegality, the government has resorted to laws such as the Uttar Pradesh (Regulation of Building Operations) Act, 1958, and the Uttar Pradesh Urban Planning and Development Act, 1973, which have provisions for demolition of illegally constructed buildings by civic agencies.

Thus, in every case, the destruction of houses by civic agencies—though done immediately after the police declared the owners as accused or related to the accused in a crime—are being shown as the consequence of an ongoing case of violation of building laws or encroachment on government land. For instance, in Javed's case, the PDA says the house was built without getting its map passed by it. "Bulldozers were used by PDA under the ambit of law. Heavy police deployment was there as violent incidents happened earlier," said Prashant Kumar, ADG, Law and Order, Uttar Pradesh Police. Similarly, KDA secretary Shatrughan Vaishya said Ishtiyaq used his building for commercial purposes while he had sought approval for residential purposes.

These claims, however, have been rejected by the owners of the demolished buildings. Besides, they say, no process was followed in ordering the demolition. Advocate K.K. Rai, who is representing Javed, says that no advance notice was served to his client. A demolition notice was pasted on the house on the evening of June 11; the next day, it was razed to rubble. Javed's party WPI claims that the house did not belong to him but to his wife and the notice pasted on the wall had many factual mistakes. "They chose Sunday deliberately, so that no legal help can be sought," tweeted the party.

Govind Mathur, former chief justice of the Allahabad High Court, has also termed these demolitions illegal.